

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF THE E½ OF SECTION 25, T. 14N., R. 66W., 6TH P.M., LARAMIE COUNTY, WYOMING, TO BE KNOWN AS SADDLE RIDGE, 8TH FILING ANNEXATION (LOCATED NORTH OF AND ADJACENT TO PERSHING BOULEVARD, WEST OF CHRISTENSEN ROAD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That WJE, LLC, owner of the parcel of land being situated in a portion of the E½ of Section 25, T. 14N., R. 66W., 6th P.M., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffery B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT

Saddle Ridge, 8th Filing Annexation Summation

CASE NUMBER: UDC-15-00422

SUBDIVISION CODE: SDRA

PREPARED BY: Joshua M. Tetzlaff

PUBLIC HEARING: August 10, 2015

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Complete Application
- Petition Signed by property owners
- Annexation Map 150626
- Soils Report (deferred to time of development)
- Signed clearance from the Board of Public Utilities

STAFF RECOMMENDATION

Staff recommends approval of the annexation application for Saddle Ridge, 8th Filing, with the following two (2) conditions:

- 1) All technical revisions stated by staff in the official comments are addressed (City Surveyor & Development Department)
- 2) E. Pershing Boulevard from the current City Limits to the farthest point of this annexation be included as part of this annexation.

ANNEATION REPORT & STAFF REPORT

Saddle Ridge, 8th Filing Annexation

CASE NUMBER: UDC-15-00422
PREPARED BY: Joshua M. Tetzlaff
PUBLIC HEARING: August 10, 2015

SUBDIVISION CODE: SDRA

OWNER: William J. Edwards 307.634.8400
WJE, LLC
506 Shoshoni Street
Cheyenne, WY 82009

AGENT: John Edwards 307.634.8800
Edwards Development, LLC
506 Shoshoni Street
Cheyenne, WY 82009

PROJECT: Saddle Ridge, 8th Filing Annexation

WORK DESCRIPTION: An annexation application for a parcel north of E. Pershing Boulevard, west of Christensen Road

LOCATION:

1. Legal Description: a portion of the E½ of Section 25, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming
2. Location: North of and adjacent to E. Pershing Boulevard, west of Christensen Road
3. Address: N/A

SIZE: 65.25 acres

CURRENT ZONING: A-1 Agricultural and Rural Residential

PROPOSED ZONING: MR-2 Medium Density Residential

EXISTING LAND USE: Undeveloped

PROPOSED LAND USE: Single-Family Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Low-Density Residential and Public	A-1	County
South	Low-Density Residential	AR	County
East	Undeveloped	A-2	County
West	Residential	MR-2	City

EXECUTIVE SUMMARY:

This annexation application is for about sixty-five (65) acres of land north of and adjacent to E. Pershing Boulevard, west of Christensen Road. This application was submitted along with a zone change application from County A-1 Agricultural and Rural Residential to MR-2 Medium Density Residential-Developing. Eventually, a final plat application will need to come before you before construction can begin.

PlanCheyenne is supportive of this sort of development and annexing it into the City. This is evidenced by it being designated Urban Residential in the future land use plan as well as it being located within the Urban Service Boundary. The City has also been actively involved in the potential development of Christiansen Road underscoring the expected City growth into this area. PlanCheyenne is also supportive of its location near existing and proposed schools as well as the proposed Greenway extension through the project.

As with any expansion at the edge of the City, this development will impact services within the City. This can be seen with the Police Department's comments relating to additional officers needed to continue to provide the same level of service. Similar impacts are expected with fire protection, sanitation services, streets, and parks maintenance. In general, there are a couple options with City services. These options include maintaining the same levels of service by making new investments as the City expands or to not make new, additional investments and to reduce the levels of service across the City. With regard to making investments to maintain levels of service, the options are for the tax base as a whole to make those additional investments for the new development, for new development to contribute to the new investments, or some combination of the two.

With this annexation and subsequent development, it is expected that the area will be developed according to standards of the Unified Development Code (UDC). It is also expected that all utilities will be stubbed to the edges of the project to allow future development on neighboring properties to occur.

Due to meeting the review criteria found in Wyoming Statute 15-1-402, staff recommends approval of this annexation with the following conditions:

- 1) All technical revisions stated by staff in the official comments are addressed (City Surveyor & Development Department)***
- 2) E. Pershing Boulevard from the current City Limits to the farthest point of this annexation be included as part of this annexation.***

PlanCheyenne:

This annexation and subsequent platting and zone change are consistent with PlanCheyenne. On the future land use map found in PlanCheyenne, the subject area has been designated as Urban Residential. The Urban Residential land use designation is for a broad variety of housing types and densities. It also calls for development within the Urban Service Boundary, in which this plat is located. Urban Residential also contemplates complimentary uses being integrated within the neighborhoods to serve the community. This 8th Filing is near both an existing elementary school and a proposed elementary school. It is also near parks and trails to serve the neighborhood.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

The annexation of this property will increase the health, safety, and welfare of the residents of the development once it is built. By being in City Limits, the residential will receive access to City Fire and Police services. The residents will also be hooked to City Water and Sanitary Sewer instead of having wells and septic systems.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This subdivision, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the west makes the parcel a natural and geographic park of the City. The residents will work likely work in the Cheyenne area and will be a part of the social and economic fabric that is Cheyenne. Christiansen Road is planned to be a major north/south connection that would tie this area into the employment center known as Cheyenne Business Parkway, which is also in the City.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be available to this location. As with any expansion at the edge of the City, it will typically require the expansion of City services. This is referenced by the Police Department's comment. Similar impacts are expected for services such as fire protection, sanitation services, street maintenance, and park maintenance.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcel proposed for annexation is about 31% contiguous, all along the western edge of the proposed product. This meets the requirements of W.S. 15-1-407.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Utility franchises are in place to serve the parcel.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the required agencies on July 10, 2015.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Development will require extension of water and sewer services, which are available to the subject property. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Reviewing Agencies w/ Comments:

- Board of Public Utilities (Linda Gunter) **(FYI)**
 - o FYI: Owner/developer is responsible for verifying the remaining available sewer capacity of the existing sewer system in the area to serve this project. A possible upsizing of the existing 12" sewer in Pershing Blvd. and Whitney Rd. in order to provide necessary sewer capacity for the full build out of the 7th, 8th and 9th Filings of Saddle Ridge development may be needed. The property Owner/Developer shall be required to extend the water and sanitary sewer utilities from their current location to the farthest point (or points) of the property being developed. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owner/developer. The developer may be required to build a water booster station to provide the necessary water pressure to the upper areas of the development. The Owner/Developer will be required to construct a looped water main to serve this development.
 - o A Wyoming Professional Engineer will need to submit proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities. After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. After the issue of the D.E.Q., permit and the City Engineers Office and Cheyenne Fire Department have reviewed and signatures of approval are on the cover sheet. Then the Agent/Owner may employ a licensed contractor to install the utilities, apply for all applications for water/sewer tap permits from the BOPU, and request a preconstruction meeting with all parties involved

- prior to construction.
 - All water and sanitary sewer utilities has to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming. All BOPU's water and sewer utilities shall be located in the City of Cheyenne Street Right-of-Ways or have the appropriate easements record at the Clerk of Laramie County Real Estate Office or the easements need to be shown on the recorded plat.
- City Surveyor (Jack Studley) **(Correct Prior to Approval)**
 - Boundary data and legal descriptions appear in order.
 - In the DESCRIPTION, the fifth course, the Azimuth is properly provided as an Azimuth of 230°±11'48". However, on the map this course is shown as an Azimuth of 50°±11'48". It is recommended that the two course readings be identical. Preferably as it properly appears in the DESCRIPTION.
 - The CERTIFICATE OF SURVEYOR is prepared for the signature of Jeff Jones, PLS 5910, but the LEGEND calls for the setting of survey caps with the John Steil, PLS 2500, identification. This needs to be corrected.
 - The coordinates provided for the two City Control Stations "PERSHING" and "MICRO", are not as published. These are required to be corrected.
 - With the correction of the City Control Station coordinates, please double check the appropriate coordinates for the tied corners of this annexation.
 - What is the year this map was prepared?
- County Planning & Development (Brett Walker) **(Include Prior to Approval)**
 - Please include that portion of E. Pershing Road adjacent along the southern edge of the proposed area in this annexation.
- Development Department (Josh Tetzlaff) **(Correct Prior to Approval)**
 - Customarily, legals within title blocks have read "E1/2" instead of "East Half." Please revise your language within the title block to reflect this.
- Engineering Department – General (Nathan Beauheim) **(Include Prior to Approval)**
 - Concur with Laramie County Planning's request to add Pershing to the annexation. Please also include the portion of Pershing in front 7104-7110 and 7112 in the annexation so as to not create an additional discontinuity in annexation status.
 - The City Engineer's Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure.
- Metro Planning Office (Nancy Olson) **(Include Prior to Approval)**
 - The MPO requests the entire RIGHT of Way of Pershing Blvd adjacent to this project be annexed at the same time as the subdivision.
- Police Department (Brian Kozak) **(FYI)**
 - When built out this development will require two FT police officer positions.

Reviewing Agencies w/o Comments:

- Charter (Kurt Quinlivan)
- Cheyenne Light, Fuel & Power (Jack Whyatt)
- City Engineer (John Hall)
- County Assessor (Clarice Blanton)
- Development Department (Brandon Cammarata)
- Engineering Development – GIS/Tech (Gary Stogsdill)
- Environmental Health Department (Jennifer Escobedo)
- Fire Department (Jim Schamerhorn)
- Land Records Technician (Harry Osbourn)
- Parks and Recreation Department (Teresa Moore)
- Urban Planning (Matt Ashby)

Reviewing Agencies not Responding:

- CenturyLink (Bob Bates)

- County Attorney (Mark Voss)
- County Clerk (Vicki Swanson)
- County Fire District #2 (Jason Caughey)
- County Public Work (Justin Arnold)
- High West Energy (Lloyd Sisson)
- Laramie County Conservation District (Jim Cochran)
- Public Works (Vick Nemecek)

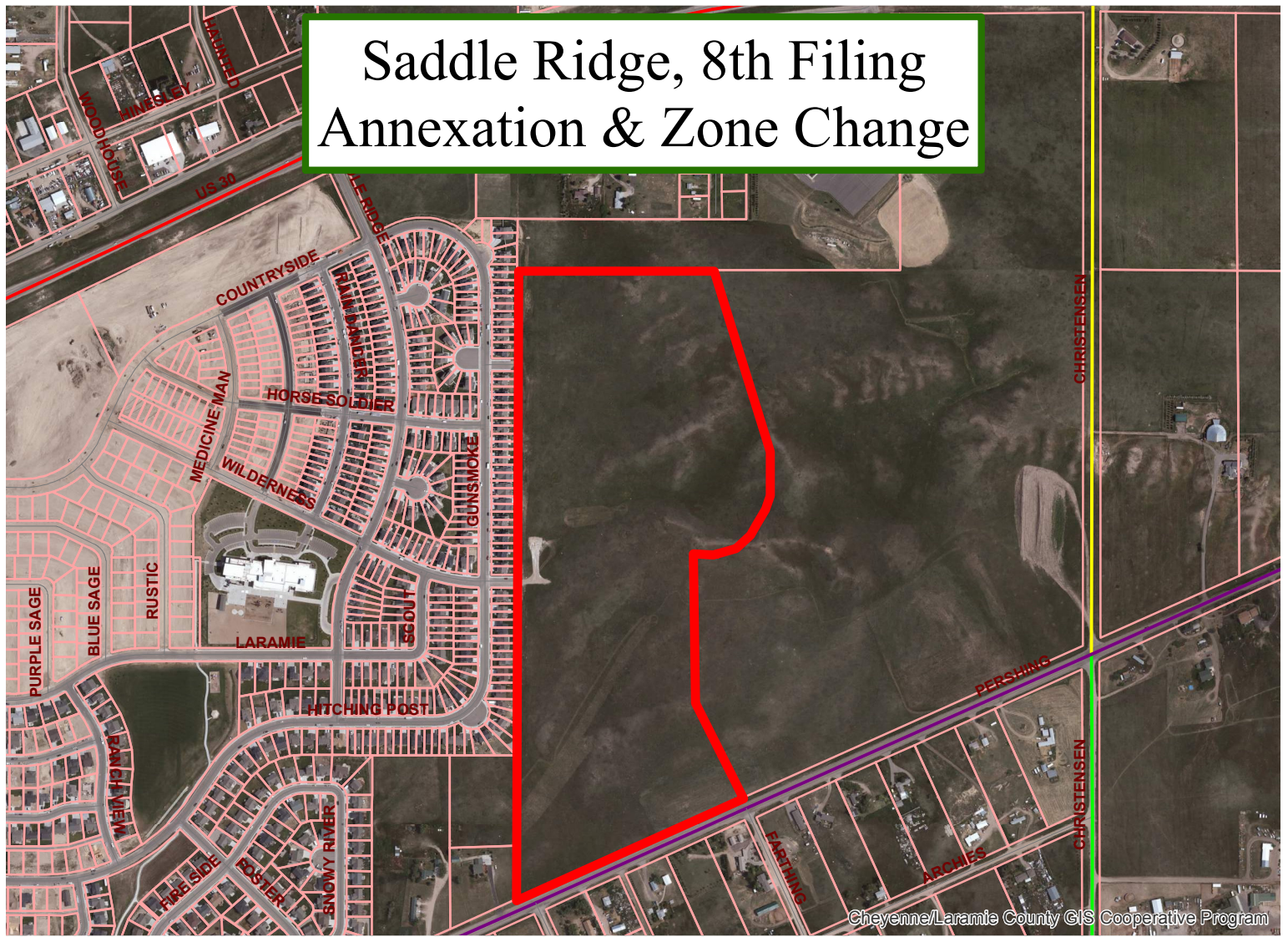
Other Comments Received:

- None

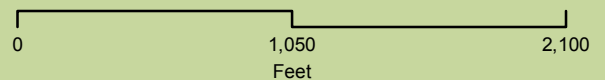
Encl: Annexation Map

Cc: Agent
Owner
File

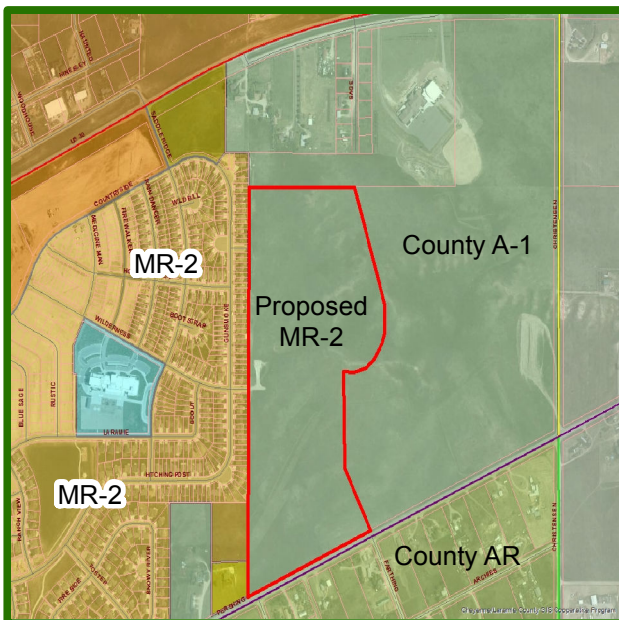
Saddle Ridge, 8th Filing Annexation & Zone Change



Applicant: WJE, LLC
 Agent: John Edwards, Edwards Development, LLC
 Application Numbers
 Annexation: UDC-15-00422
 Zone Change: UDC-15-00423



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Annexation



A-1
CHEYENNE HILLS CHURCH
7505 US HWY 30
Cheyenne, WY 82009



A portion of the East Half (E½) of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the southwest corner of Cheyenne Hills Church Subdivision, by which the North Quarter corner of Section 25 bears 00° 09' 47", a distance of 1355.70 feet; thence 90° 01' 33", along the south line of Cheyenne Hills Church Subdivision, a distance of 1054.70 feet; thence 180° 07' 26", a distance of 249.40 feet to the beginning of a curve to the left; thence 254.78 feet along said curve, through an angle of 41° 37' 46", having a radius of 350.66 feet, and whose long chord bears 159° 18' 33", a distance of 249.21 feet; thence 140° 11' 48", a distance of 83.88 feet; thence 230° 11' 48", a distance of 120.00 feet; thence 140° 11' 48", a distance of 200.00 feet; thence 50° 11' 48", a distance of 140.00 feet; thence 140° 11' 48", a distance of 32.43 feet to the beginning of a curve to the right; thence 839.13 feet along said curve, through an angle of 129° 58' 34", having a radius of 370.00 feet, and whose long chord bears 205° 10' 05", a distance of 670.51 feet; thence 270° 08' 22", a distance of 245.13 feet; thence 180° 08' 22", a distance of 60.00 feet; thence 178° 59' 37", a distance of 100.02 feet; thence 180° 08' 22", a distance of 360.61 feet to the beginning of a curve to the left; thence 118.30 feet along said curve, through an angle of 23° 46' 22", having a radius of 285.11 feet, and whose long chord bears 168° 01' 58", a distance of 117.45 feet; thence 155° 55' 35" a distance of 498.74 feet to the north line of Pershing Boulevard; thence 245° 55' 27", along said line, a distance of 1166.85 feet to the west line of the E½ of Section 25; thence 00° 08' 22", along said line, a distance of 2886.45 feet to the point of beginning. Containing 65.26 acres more or less.

CURRENT ZONING	PROPOSED ZONING
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A-1
MR-2

FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
FOUND 1½" ALUMINUM CAP STAMPED "2927"
FOUND GLO STONE
FOUND 2" ALUMINUM CAP STAMPED "LS 519"
SET 5½" X 24" LONG REBAR WITH 1½" ALUMINUM CAP
STAMPED "SSS P.L.S. 2500"
CITY CONTROL MONUMENT

PROPOSED AREA FOR ANNEXATION

LANDS CURRENTLY INCORPORATED WITH THE CITY
OF CHEYENNE CORPORATE LIMITS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS
DAY OF _____, 2015.

MAYOR

ATTEST: _____
CITY CLERK

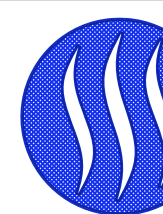
- 1.) BASIS OF AZIMUTH – CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "MICRO" AND "PERSHING".
- 2.) THIS PROPOSED PLAT DOES NOT FALL WITHIN ANY FEMA 100 YEAR FLOOD PLAIN ACCORDING TO F.E.M.A. MAP PANEL NO. 5602C1114F DATED JANUARY 17, 2007.
- 3.) WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 4.) ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL
- 5.) NEAREST FIRE HYDRANT AT NORTHEAST CORNER OF EXISTING WILDERNESS TRAIL ALONG WEST BOUNDARY LINE.
- 6.) CURRENT INCORPORATED CITY LANDS ABOUT APPROXIMATELY 31.3% OF THE 8,410.41' PARCEL PERIMETER.

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

**ANNEXATION
FOR
SADDLE RIDGE 8TH
FILING**

A PORTION OF THE EAST HALF OF
SECTION 25, T.14N., R.66W., OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

PREPARED June 15



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th ST. CHEYENNE, WY. 82001 o (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 o (307) 322-9789

www.Steilsurvey.com info@Steilsurvey.com

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH	ARC LENGTH
C285	129° 56' 34"	370.00'	205° 10' 05"	670.51'	839.13'
C286	41° 37' 46"	350.66'	159° 18' 33"	249.21'	254.78'
C287	23° 46' 22"	285.11'	168° 01' 58"	117.45'	118.30'

REVISED: 6/19/2015
8TH_ANNEXATION.DWG
ALL RIGHTS RESERVED

\\192.168.2.102\EDC\PROJECTS\SADDLE RIDGE II\12047 - SADDLE RIDGE II\CADD\SURVEYING\ANNEXATION\SADDLE RIDGE 8TH_ANNEXATION.DWG
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